

R.G. Anand vs Deluxe Films

A Landmark Copyright Case Study: The Idea-Expression Dichotomy
and the Lay Observer Test.

Background of the Dispute

- R.G. Anand, a renowned playwright, wrote the successful play *Hum Hindustani* in 1953, exploring the theme of provincialism.
- He pitched the concept for a film adaptation to Mohan Sehgal (Deluxe Films) in 1955.
- Without permission, Sehgal released the movie *New Delhi* in 1956, revolving around the identical theme.
- Anand filed a lawsuit claiming the film was a blatant copyright infringement of his play.



The Core Legal Question

Did the film *New Delhi* unlawfully infringe upon the copyright of *Hum Hindustani* by reproducing its elements, or did it merely share a common, unprotectable idea?

The Idea-Expression Dichotomy

Ideas are Not Protected

Copyright law does not protect mere ideas, themes, historical facts, or broad concepts. They are considered common property, freely available for all creators to explore and build upon.

Expressions are Protected

The law strictly protects the unique form, manner, and expression of an idea. For copyright infringement to occur, the copying must extend beyond the concept to the substantial and material expression.

Establishing Infringement



Substantial Similarity

The copying must be substantial and material, going significantly beyond mere coincidental or broad thematic resemblances.



Lay Observer Test

Would an ordinary, reasonable person, after watching both works, form the distinct and unmistakable impression that it is a copy?



Totality of Impression

The court must evaluate the overall impact and expression of the work, rather than just dissecting isolated or fragmented similarities.

Comparing the Works

Element	<i>Hum Hindustani</i> (Play)	<i>New Delhi</i> (Film)
Central Theme	Provincialism and regional prejudice	Provincialism and regional prejudice
Context & Scope	Focused tightly on specific family dynamics	Broader canvas involving multiple cinematic sub-plots
Expression	Theatrical dialogue and stage setting	Cinematic sequences, songs, and distinct narrative pacing
The Climax	Specific resolution tailored to the stage play	Entirely different climax and character arcs

The Supreme Court Verdict

1978

Landmark Judgment

No Copyright Infringement

The Supreme Court ruled in favor of Deluxe Films. While acknowledging thematic similarities (the shared idea of provincialism), the Court concluded that the expression of those ideas was substantially different, and an ordinary viewer would not perceive the film as a copy of the play.

The Case's Legacy



Where the same idea is being developed in a different manner, it is manifest that the source being common, similarities are bound to occur.



— Supreme Court of India, R.G. Anand v. Deluxe Films

Image Sources



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